

participation in group conduct does not suffice.

The requests for punitive and exemplary damages are also not specific with respect to the causes of action or facts alleged.

Leave to Amend

Given the above, the Court **sustains** the demurrers. While leave to amend should not be granted where that would not change the result, because of the status of the Cross-Complainants, it is difficult to tell whether competent counsel could rebut the conclusions the Court has come to above. The only reason the Court is granting leave to amend is that there is stated judicial interest in ensuring that the Cross-Complainants have an opportunity to hire counsel and pursue their interests. That interest is not unlimited. Cross-Complainants have 30 days to hire counsel and amend.

10. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED CROSS-COMPLAINT**
FILED BY: SOLARENEWAL LLC
TENTATIVE RULING:

See line 10.

11. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: TO FIRST AMENDED CROSS-COMPLAINT
FILED BY: SOLARENEWAL LLC
TENTATIVE RULING:

See line 10.

12. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: TO FIRST AMENDED CROSS-COMPLAINT
FILED BY: GROUND CAPITAL, LLC
TENTATIVE RULING:

See line 10.

13. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
***HEARING ON MOTION IN RE: TO FIRST AMENDED CROSS-COMPLAINT**
FILED BY: GROUND CAPITAL, LLC
TENTATIVE RULING:

See line 10.

14. 9:00 AM CASE NUMBER: C24-01555
CASE NAME: CARMEN PRIVAT-GILMAN VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: RECONSIDERATION UNDER CCP 1008(B) AND CALIFORNIA RULES OF COURT, RULE 2.257(C)(1)**
FILED BY: PRIVAT-GILMAN, CARMEN
TENTATIVE RULING:

Plaintiffs filed a complaint on June 14, 2024 for issues arising out of events on March 17, 2023. Unfortunately for Plaintiffs, counsel filed the wrong complaint. On June 17, 2024, Plaintiff attempted to efile an amended complaint with the correct information. The clerk rejected that filing because the pleading was not signed. Plaintiffs refiled the complaint the next day. On June 28, 2024, the Court denied Plaintiffs' application to have the document deemed filed nunc pro tunc to June 17, 2024. Plaintiffs now seek reconsideration, arguing that he and the Court did not know about California Rule of Court 2.257(c)(1), which permits electronic filing of complaints without signatures. He argues that this one day is essential given the statute of limitations.

Even if the Court grants the relief requested, Plaintiffs are outside of the statute of limitations. First, Code of Civil Procedure does not simply append 90 days to the end of the one year statute of limitations in cases such as this one. Instead, it states that plaintiffs must give 90 days of intent to sue before filing. There is only one single situation in which the statute of limitations is tolled: "(d) If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." That is not the circumstance here.

Moreover, June 17, 2024 is two days beyond one year plus 90 days. March 17, 2023 plus one year plus 90 days is June 15, 2024.²

Plaintiffs have articulated no change in facts or law that merits a motion for reconsideration. Moreover, Plaintiffs' request, if granted, would have no material effect on this case. For that reason, it is **denied**.

15. 9:00 AM CASE NUMBER: C24-03209
CASE NAME: JENISE HAMBLIN VS. DOES 1 THROUGH 50 INCLUSIVE
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES**
FILED BY: HAMBLIN, JENISE KAY
TENTATIVE RULING:

Pursuant to stipulation by the parties and order from the Court, this motion has been continued to August 27, 2026.

² Plaintiffs also make incomprehensible arguments about the two hours between Steve Gilman's death and March 18, 2023. The statute of limitations was not one day but rather one year.